

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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JEROME MACK,

Plaintiff, **FIRST AMENDED COMPLAINT**

-against-

10-cv-3257 (ARR) (MDG)

THE CITY OF NEW YORK; SGT. NEIL PRASAD, TAX #
925940; DETECTIVE SUSIE PERALTA, SHIELD #
3331; DETECTIVE JOEL POLICHRON, SHIELD #
4640; DETECTIVE PEDRO ABREU, SHIELD # 577;
DETECTIVE FRANK SARRICA, TAX # 924463;
DETECTIVE ANDREW DUGUID, TAX #925220;
DETECTIVE MICHAEL ROBBERT, TAX # 904914;
DETECTIVE CHRISTOPHER WARD, TAX # 934299; the
individual defendant(s) sued individually and
in their official capacities,

ECF Case

Jury Trial Demanded

Defendants.

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PRELIMINARY STATEMENT

1. This is a civil rights, common law, and tort action in which plaintiff seeks relief for the violation of plaintiff's rights secured by 42 U.S.C. §§ 1983 and 1985(3); and the First, Fourth, Fifth, and Fourteenth Amendments to the United States Constitution; and, the laws of the State of New York. Plaintiff's claims arise from incidents that arose on or about May 26, 2009. During the incidents, the City of New York, and members of the New York City Police Department ("NYPD") subjected plaintiff to, among other things, excessive force, assault and battery, false arrest, unlawful search and seizure, retaliation for free speech, conspiracy, harassment, punishment without due process, conversion of chattels, and implementation and continuation of an unlawful municipal policy,

practice, and custom. Plaintiff seeks compensatory damages from all defendants, compensatory and punitive damages from the individual defendants, declaratory relief, an award of costs and attorney's fees, pursuant 42 U.S.C. §§ 1988, and such other and further relief as the Court deems just and proper.

JURISDICTION & VENUE

2. This action is brought pursuant to 42 U.S.C. §§ 1983 and 1985(3), and the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution. Jurisdiction is conferred upon this Court by the aforesaid statutes and 28 U.S.C. §§ 1331 and 1343.

3. Plaintiff invokes the supplemental jurisdiction of this Court pursuant to 28 U.S.C. § 1367 to hear and decide claims arising under state law. A Notice of claim was duly filed on defendant City of New York within 90 days of the incident at issue, more than 30 days have elapsed since such filing and the City has refused to settle plaintiff's claims. Moreover, this action has been filed within one year and 90 days of the incidents that are the basis of this claim.

4. Venue is proper here pursuant to 28 U.S.C. § 1391 because some of the acts in question occurred in Kings County, and the City of New York is subject to personal jurisdiction in the Eastern District of New York.

PARTIES

5. Plaintiff Jerome Mack is a resident of the State of New York, Kings County.

6. Defendant City of New York is a municipal corporation organized under the laws of the State of New York, which violated plaintiff's rights as described herein.

7. Defendant Sgt. Neil Prasad is a New York City Police Officer, assigned Tax No. 925940, employed with the Brooklyn North Narcotics Bureau, located in Brooklyn, New York or other as yet unknown NYPD assignment who violated plaintiff's rights as described herein.

8. Defendant Detective Susie Peralta is a New York City Police Officer, assigned Shield No. 3331, employed with the Brooklyn North Narcotics Bureau, located in Brooklyn, New York or other as yet unknown NYPD assignment who violated plaintiff's rights as described herein.

9. Defendant Detective Joel Polichron is a New York City Police Officer, assigned Shield No. 4640, employed with the Brooklyn North Narcotics Bureau, located in Brooklyn, New York or other as yet unknown NYPD assignment who violated plaintiff's rights as described herein.

10. Defendant Detective Pedro Abreu is a New York City Police Officer, assigned Shield No. 577, employed with the Brooklyn North Narcotics Bureau, located in Brooklyn, New York or other as yet

unknown NYPD assignment who violated plaintiff's rights as described herein.

11. Defendant Detective Frank Sarrica is a New York City Police Officer, assigned Tax No. 924463, employed with the Brooklyn North Narcotics Bureau, located in Brooklyn, New York or other as yet unknown NYPD assignment who violated plaintiff's rights as described herein.

12. Defendant Detective Andrew Duguid is a New York City Police Officer, assigned Tax No. 925220, employed with the Brooklyn North Narcotics Bureau, located in Brooklyn, New York or other as yet unknown NYPD assignment who violated plaintiff's rights as described herein.

13. Defendant Detective Michael Robbert is a New York City Police Officer, assigned Tax No. 904914, employed with the Brooklyn North Narcotics Bureau, located in Brooklyn, New York or other as yet unknown NYPD assignment who violated plaintiff's rights as described herein.

14. Defendant Detective Christopher Ward is a New York City Police Officer, assigned Tax No. 934299, employed with the Brooklyn North Narcotics Bureau, located in Brooklyn, New York or other as yet unknown NYPD assignment who violated plaintiff's rights as described herein.

15. The individual defendants are sued in their individual and official capacities.

STATEMENT OF FACTS

16. On May 26, 2009, at and in the vicinity of 340 Dumont Avenue, Apartment 13F, Brooklyn, New York, several police officers operating from the Brooklyn North Narcotics Bureau, including upon information and belief, defendants Sgt. Neil Prasad, Detective Susie Peralta, Detective Joel Polichron, Detective Pedro Abreu, Detective Frank Sarrica, Detective Andrew Duiguid, Detective Michael Robbert, and Detective Christopher Ward, at times working in concert, and at times working independently, committed the following illegal acts against plaintiff.

17. On May 26, 2009, at approximately 7:30 p.m., at 340 Dumont Avenue, Apartment 13F, Brooklyn, New York (plaintiff's "apartment"), defendants Sgt. Neil Prasad, Detective Susie Peralta, Detective Joel Polichron, Detective Pedro Abreu, Detective Frank Sarrica, Detective Andrew Duiguid, Detective Michael Robbert, and Detective Christopher Ward, without either consent, an arrest warrant, a lawful search warrant, probable cause, or reasonable suspicion that plaintiff (or any third person) had committed a crime unlawfully entered plaintiff's apartment.

18. While entering the apartment, defendants maliciously and unnecessarily broke the apartment door.

19. Once the defendants entered the apartment, plaintiff was not free to disregard their questions, walk away or leave the scene.

20. Defendants search plaintiff's apartment and found no weapons, contraband, or narcotics.

21. While inside the apartment, defendants Sgt. Neil Prasad, Detective Susie Peralta, Detective Joel Polichron, Detective Pedro Abreu, Detective Frank Sarriica, Detective Andrew Duiguid, Detective Michael Robbert, and Detective Christopher Ward, without either consent, an arrest warrant, a lawful search warrant, probable cause, or reasonable suspicion that plaintiff (or any third person) had committed a crime falsely arrested plaintiff.

22. Plaintiff complained about the defendants' conduct, telling the defendants that he had not committed any crimes and that the defendants were acting unlawfully against him.

23. During the arrest of plaintiff, defendants committed excessive force against plaintiff by, among other things, maliciously, gratuitously, and unnecessarily grabbing him and placing excessively tight handcuffs on plaintiff's wrists. Those defendants who did not touch him, witnessed these acts, but failed to intervene and protect plaintiff from this conduct.

24. Among other improper reasons, defendants were motivated to falsely arrest plaintiff, because of plaintiff's exercise of free speech.

25. The individual defendant officers did not have an objective and/or reasonable basis to use any degree of force against plaintiff, since plaintiff was unarmed, compliant, and did not resist arrest.

26. Plaintiff was physically injured as a result of the excessive use of force, and suffered marks to his body and pain.

27. Plaintiff complained that the handcuffs were too tight, but the defendants ignored him.

28. The defendants detained plaintiff for a period of time while they searched his apartment. During the search of plaintiff's apartment, the defendants misappropriated and converted plaintiff's personal property, including \$1,800 and his heirlooms, clothes and jewelry.

29. Thereafter, the defendants released plaintiff without any charges being filed.

30. The aforesaid events are not an isolated incident. Defendant City of New York is aware (from lawsuits, notices of claim, and complaints) that many of the NYPD's officers are insufficiently trained on the proper way to obtain a search warrant, search a residence, investigate an incident, determine if probable cause exists, use force, respond to complaints against them, and treat innocent and/or uninvolved individuals who are at an incident scene and/or investigation location.

31. Defendant City of New York is further aware that such improper training has often resulted in a deprivation of civil rights. Despite such notice, City of New York has failed to take corrective action. This failure caused the defendants in the present case to injure plaintiff, violate the law, and violate the plaintiff's rights.

32. Moreover, defendant City of New York was aware prior to the incident that the individual defendants lacked the objectivity, temperament, maturity, discretion, and disposition to be employed. Despite such notice, defendant has retained these individuals, and failed to adequately train and supervise them.

33. Further, defendant City of New York was aware prior to the incident that the individual defendants (in continuation of its illegal custom, practice and/or policy) would stop and/or arrest innocent individuals, based on pretexts, in order to meet productivity goals, in minority and low income neighborhoods, such as occurred here.

34. At all times defendant City of New York, by the NYPD, and its agents, servants and/or employees, carelessly, and recklessly trained the individual defendants for the position of police officers.

35. At all times, defendant City of New York, by the NYPD, and its agents, servants and/or employees, carelessly, and recklessly supervised, controlled, managed, maintained and inspected the activities of the individual defendants.

36. At all times, defendant City of New York, by the NYPD, and its agents, servants and/or employees caused, permitted and allowed the individual defendants to act in an illegal, unprofessional, and/or deliberate manner in carrying out their official duties and/or responsibilities.

37. At all times, defendant City of New York, by the NYPD, and its agents, servants and/or employees carelessly and recklessly

retained in its employ, the individual defendants, who were clearly unfit for their positions, who acted in an illegal, unprofessional, and/or deliberate manner in carrying out their official duties and/or responsibilities.

38. The occurrence(s) and injuries sustained by plaintiff, were caused solely by, and as a result of the malicious, reckless, and/or intentional conduct of the defendant City of New York and its agents, servants and/or employees, as set forth above, without provocation on the part of the plaintiff contributing thereto, specifically, the intentional and reckless manner in which said defendant hired, trained, supervised, controlled, managed, maintained, inspected and retained the individual defendants.

39. The individual defendants acted in concert committing the above-described illegal acts toward plaintiff.

40. Plaintiff did not resist arrest at any time during the above incidents.

41. Plaintiff did not violate any law, regulation, or administrative code; commit any criminal act; or act in a suspicious or unlawful manner prior to or during the above-described incidents.

42. The individual defendants did not observe plaintiff violate any law, regulation, or administrative code; commit any criminal act; or act in a suspicious or unlawful manner prior to or during the above-described incidents.

43. At no time prior to, during or after the above incidents were the individual defendants provided with information, or

in receipt of a credible or an objectively reasonable complaint from a third person, that plaintiff had violated any law, regulation, or administrative code; committed any criminal act; or acted in a suspicious or unlawful manner prior to or during the above incidents.

44. Defendants acted under pretense and color of state law and their individual and official capacities and within the scope of their employment. Said acts by said defendants were beyond the scope of their jurisdiction, without authority or law, and in abuse of their powers, and said defendants acted willfully, knowingly, and with the specific intent to deprive plaintiff of his rights.

45. As a direct and proximate result of defendants' actions plaintiff experienced personal and physical injuries, pain and suffering, fear, an invasion of privacy, psychological pain, emotional distress, mental anguish, embarrassment, humiliation, and financial loss.

46. Plaintiff is entitled to receive punitive damages from the individual defendants because the individual defendants' actions were motivated by extreme recklessness and indifference to plaintiff's rights.

FIRST CLAIM

(FALSE ARREST & UNLAWFUL SEARCH AND SEIZURE UNDER FEDERAL LAW)

47. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

48. Defendants falsely arrested plaintiff without consent, an arrest warrant, a lawful search warrant, probable cause, or reasonable suspicion that plaintiff had committed a crime.

49. Accordingly, defendants are liable to plaintiff for false arrest and unlawful search and seizure under 42 U.S.C. § 1983; and the Fourth and Fifth Amendments to the United States Constitution.

SECOND CLAIM

(FALSE ARREST & UNLAWFUL SEARCH AND SEIZURE UNDER STATE LAW)

50. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

51. Defendants falsely arrested plaintiff without consent, an arrest warrant, a lawful search warrant, probable cause, or reasonable suspicion that plaintiff (or any third person) had committed a crime.

52. Accordingly, defendants are liable to plaintiff for false arrest and unlawful search and seizure under New York State law.

THIRD CLAIM

(EXCESSIVE FORCE)

53. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

54. The individual defendants' use of force upon plaintiff, as described herein, and the individual defendants' failure to intervene, was objectively unreasonable and caused plaintiff pain and injury.

55. Accordingly, defendants are liable to plaintiff for using unreasonable and excessive force, pursuant to 42 U.S.C. § 1983; and the Fourth and Fifth Amendments to the United States Constitution.

FOURTH CLAIM

(ASSAULT)

56. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

57. Among other things as described above, defendants' search and seizure, and use of force against plaintiff placed him in fear of imminent harmful and offensive physical contacts.

58. Accordingly, defendants are liable to plaintiff under New York State law for assault.

FIFTH CLAIM

(BATTERY)

59. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

60. Among other things as described above, defendants' search and seizure, and use of force against plaintiff were illegal physical contacts.

61. Accordingly, defendants are liable to plaintiff under New York State law for battery.

SIXTH CLAIM

(VIOLATING PLAINTIFF'S RIGHT TO FREE SPEECH)

62. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

63. Plaintiff exercised free speech during the incident by, among other things, telling the individual defendants that he had not committed a crime, that the officers were mistreating him and that the individual defendants were acting in an unlawful manner.

64. Plaintiff's use of free speech was a motivating factor in the individual defendants' decision to arrest, and prosecute him. Accordingly, defendants are liable to plaintiff under the First Amendment to the United States Constitution for violating plaintiff's right to free speech.

SEVENTH CLAIM

(FAILURE TO SUPERVISE)

65. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

66. The supervisor defendants are liable to plaintiff because they supervised the subordinate individual defendants concerning above-mentioned unlawful acts against plaintiff, and approved their unlawful actions.

EIGHTH CLAIM

(DENIAL OF THE FOURTEENTH AMENDMENT RIGHT TO DUE PROCESS)

67. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

68. Defendants are liable to plaintiff because they caused punishment to plaintiff when the defendants lied to they New York City Housing Authority, causing plaintiff to be subjected to eviction, violating plaintiff's constitutional right to due process, and the

harm occasioned by such an unconscionable action is redressable in an action for damages under the Fourteenth Amendment to the United States Constitution, and 42 U.S.C. § 1983.

NINTH CLAIM

(42 U.S.C. § 1983 CONSPIRACY)

69. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

70. Defendants are liable to plaintiff because they agreed to act in concert to inflict an unconstitutional injury; and committed an overt act done in furtherance of that goal causing damage to plaintiff.

TENTH CLAIM

(42 U.S.C. § 1985 CONSPIRACY)

71. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

72. The individual defendants arrested plaintiff in continuation of defendant City of New York's custom, practice and/or policy of stopping and/or arresting individuals based on pretexts in order to meet productivity goals in minority and low-income neighborhoods.

73. Defendants are liable to plaintiff because they conspired against plaintiff based on racial or other invidiously discriminatory animus for the purpose of depriving plaintiff of equal protection of the privileges and immunities under the law, and

committed an act in furtherance of the conspiracy, which injured plaintiff.

ELEVENTH CLAIM

(CONVERSION OF CHATTELS)

74. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

75. Plaintiff had clear legal ownership to possession of the property described above and defendants converted plaintiff's property by a wrongful taking.

76. Accordingly, defendants are liable to plaintiff for damages that resulted from the conversion under New York State law.

TWELFTH CLAIM

(FEDERAL MONELL CLAIM)

77. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

78. Defendant City of New York, through a policy, practice and custom, directly caused the constitutional violations suffered by plaintiff.

79. Upon information and belief, defendant City of New York, at all relevant times, was aware that the defendants are unfit officers who have previously committed the acts alleged herein, have a propensity for unconstitutional conduct, or have been inadequately trained.

80. Nevertheless, defendant City of New York exercised deliberate indifference by failing to take remedial action. The City

failed to properly train, retrain, supervise, discipline, and monitor the individual defendants and improperly retained and utilized them. Moreover, upon information and belief, defendant City of New York failed to adequately investigate prior complaints filed against the individual defendants.

81. Further, defendant City of New York was aware prior to the incident that the individual defendants (in continuation of its illegal custom, practice and/or policy) would stop and/or arrest innocent individuals, based on pretexts, in order to meet productivity goals, in minority and low-income neighborhoods.

82. In addition, the following are municipal policies, practices and customs:

- (a) arresting innocent individuals, based on a pretext, in order to meet productivity goals;
- (b) fabricating evidence against individuals;
- (c) using excessive force against individuals; and
- (d) retaliating against individuals who engage in free speech.

THIRTEENTH CLAIM

(STATE LAW RESPONDEAT SUPERIOR CLAIM)

83. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

84. The individual defendants were acting within the scope of their employment as New York City Police Officers when they

committed the above described acts against plaintiff, including falsely arresting, assaulting, and battering plaintiff.

85. The City of New York is therefore vicariously liable under New York State law for the aforesaid torts.

WHEREFORE, plaintiff demands a jury trial and the following relief jointly and severally against the defendants:

- a. Compensatory damages in an amount to be determined by a jury against all defendants;
- b. Punitive damages in an amount to be determined by a jury against the individual defendants;
- c. Costs, interest and attorney's fees, pursuant to 42 U.S.C. § 1988; and
- d. Such other and further relief as this Court may deem just and proper, including injunctive and declaratory relief.

DATED: New York, New York
November 19, 2010

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